

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 HOUSE JOINT
5 RESOLUTION 1081

By: Manger

6
7 AS INTRODUCED

8 **[Oklahoma Constitution - ad valorem - senior fair**
9 **cash value limit - ballot title - filing]**

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12 BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES AND THE SENATE OF THE
13 2ND SESSION OF THE 60TH OKLAHOMA LEGISLATURE:

14 SECTION 1. The Secretary of State shall refer to the people for
15 their approval or rejection, as and in the manner provided by law,
16 the following proposed amendment to Section 8C of Article X of the
17 Constitution of the State of Oklahoma to read as follows:

18 Section 8C. ~~A.~~ Despite any provision to the contrary,
19 beginning January 1, ~~2005~~ 2027, the fair cash value, as determined
20 by law, on each homestead of an individual ~~head of household whose~~
21 ~~gross household income from all sources for the preceding calendar~~
22 ~~year did not exceed an amount as provided in subsection B of this~~
23 ~~section, and which individual~~ head of household who is sixty-five
24 (65) years of age or older who has occupied the property for a

1 period of at least seven (7) years prior to the first January 1 date
2 following the year during which the person attains the age of sixty-
3 five (65) years, shall not exceed the fair cash value placed upon
4 the property during the first year in which the individual head of
5 household was sixty-five (65) years of age or older ~~and had gross~~
6 ~~household income from all sources which did not exceed an amount as~~
7 ~~provided in subsection B of this section.~~ For purposes of this
8 section, absence from the homestead for a period not to exceed three
9 hundred sixty-five (365) days during any seven-year period shall not
10 disqualify the owner from eligibility. The provisions of this
11 section shall only be applicable to a homestead with a fair cash
12 value of Seven Hundred Thousand Dollars (\$700,000.00) or less. For
13 purposes of this section, the fair cash value shall be determined in
14 the same manner as provided by Section 8B of Article X of the
15 Oklahoma Constitution. Subject to the limitations of this section,
16 the fair cash value shall not exceed such amount as long as the
17 individual head of household who is sixty-five (65) years of age or
18 older owns and occupies the property ~~and as long as the gross~~
19 ~~household income from all sources does not exceed an amount as~~
20 ~~provided in subsection B of this section.~~ If any improvements are
21 made to the property, the fair cash value of the improvements shall
22 be assessed in accordance with law by the county assessor and added
23 to the assessed value of the property. Once the fair cash value of
24 the improvements has been added to the fair cash value of the

1 property, the total fair cash value shall not exceed the revised
2 valuation of the property so long as the individual head of
3 household who is sixty-five (65) years of age or older owns and
4 occupies the property ~~and so long as the gross household income from~~
5 ~~all sources does not exceed an amount as provided in subsection B of~~
6 ~~this section.~~ For any individual head of household who is sixty-
7 five (65) years of age or older prior to January 1, 1997, and has
8 gross household income from all sources of Twenty-five Thousand
9 Dollars (\$25,000.00) or less in calendar year 1996, the fair cash
10 value of the real property shall be the fair cash value placed upon
11 the property on January 1, 1997. If the individual head of
12 household ceases to own and occupy the property ~~or if the gross~~
13 ~~household income from all sources exceeds an amount as provided in~~
14 ~~subsection B of this section,~~ the fair cash value of the property
15 shall be determined as if the provisions of Section 8 of Article X
16 of the Constitution of the State of Oklahoma or any other provisions
17 relating to a limitation on the fair cash value of locally assessed
18 real property had been in effect during the time the property was
19 valued pursuant to the provisions of this section.

20 ~~B. The income threshold for the gross household income from all~~
21 ~~sources for an individual head of household under this section shall~~
22 ~~not exceed the amount determined by the United States Department of~~
23 ~~Housing and Urban Development to be the estimated median income for~~
24 ~~the preceding year for the county or metropolitan statistical area~~

1 ~~which includes such county. The Oklahoma Tax Commission shall~~
2 ~~provide such information to each county assessor each year as soon~~
3 ~~as such information becomes available.~~

4 SECTION 2. The Ballot Title for the proposed Constitutional
5 amendment as set forth in SECTION 1 of this resolution shall be in
6 the following form:

7 BALLOT TITLE

8 Legislative Referendum No. _____ State Question No. _____

9 THE GIST OF THE PROPOSITION IS AS FOLLOWS:

10 This measure amends Section 8C of Article 10 of the Oklahoma
11 Constitution. Increases in fair cash value of homesteads are
12 limited for individual heads of household age sixty-five (65) or
13 older. The increase cannot exceed the fair cash value of the
14 property during the first year in which the owner was sixty-five
15 (65) years of age or older. This limit applies if the
16 individual head of household meets both the age requirement and
17 an income limit determined by the United States Department of
18 Housing and Urban Development. This measure would eliminate the
19 income limit requirement. The age limit would not change. The
20 person would be required to have occupied the homestead for
21 seven (7) years. A person could be away from the homestead for
22 a period not to exceed three hundred sixty-five (365) days in a
23 seven-year period and still qualify. The limit on increases in
24 fair cash value of homestead property would only apply if the

1 fair cash value of the homestead is Seven Hundred Thousand
2 Dollars (\$700,000.00) or less. This value would be determined
3 the same way as it is determined for all other purposes in the
4 property tax system.

5 SHALL THE PROPOSAL BE APPROVED?

6 FOR THE PROPOSAL — YES _____

7 AGAINST THE PROPOSAL — NO _____

8 SECTION 3. The Chief Clerk of the House of Representatives,
9 immediately after the passage of this resolution, shall prepare and
10 file one copy thereof, including the Ballot Title set forth in
11 SECTION 2 hereof, with the Secretary of State and one copy with the
12 Attorney General.

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14 COMMITTEE REPORT BY: COMMITTEE ON RULES, dated 03/05/2026 - DO PASS,
15 As Amended.
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